

The Ministry of Civil Aviation, Airports Economic Regulatory Authority Employees (Number of Posts and Conditions of Service) Rules, 2011

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The Ministry of Civil Aviation, Airports Economic Regulatory Authority Employees (Number of Posts and Conditions of Service) Rules, 2011

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The Ministry of Civil Aviation, Airports Economic Regulatory Authority Employees (Number of Posts and Conditions of Service) Rules, 2011

Rule

THE-MINISTRY-OF-CIVIL-AVIATION-AIRPORTS-ECONOMIC-REGULATORY-AUTHORITY-EMPLOYEES-NUMBER-OF-POSTS-AND-CONDITIONS-OF-SERVICE-RULES-2011 of 2011

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The Ministry of Civil Aviation, Airports Economic Regulatory Authority Employees (Number of Posts and Conditions of Service) Rules, 2011

Published vide Notification New Delhi, the 29th July, 2011

Ministry of Civil Aviation

G.S.R. 589(E). - In exercise of powers conferred by sub section (1) of section 51 of the Airports Economic Regulatory Authority of India Act, 2008 [27 of 2008], the Central Government hereby makes the following rules, namely:-

Part I ? Preliminary

1.

Short title and commencement.

(1)

These Rules may be called the Ministry of Civil Aviation, Airports Economic Regulatory Authority Employees (number of posts and conditions of service) Rules, 2011.

(2)

They shall come into on the date of their publication in the Official Gazette.

2.

Applicability.

- These rules shall apply to the officers and staff of the Authority as specified in Schedule 1.

3.

Definitions.

- In these Rules, unless the context otherwise requires,-

(a)

"Act" means the Airport Economic Regulatory Authority of India Act, 2008;

(b)

"Appointing Authority" means,-

(i)

in respect of all Group 'A' posts, the Chairperson; and

(ii)

in respect of all other posts, the Secretary;

(c)

"Disciplinary Authority" means:

(i)

in respect of all Group 'A' posts, the Chairperson; and

(ii)

in respect of all other posts, the Secretary;

(d)

"Post" means any post whether permanent or temporary mentioned in the Schedules to these rules;

(e)

"Schedule" means a Schedule to these rules;

(f)

"Secretary" means the Secretary of the Authority;

(g)

"Selection Committee" means a committee constituted to consider selection for recruitment to any post in accordance with rule 7;

(h)

words and expressions used in these rules and not defined but defined in the Act shall have the same meanings as respectively as assigned to them under the Act.

Part II ? Classification of Posts and Sanctioned Strength

4.

Sanctioned Strength.

- The Sanctioned strength and scale of pay in respect of each post shall be as specified in Schedule I.

5.

Classification of posts.

- The posts in the Authority shall be classified as follows:

S.No.

Description

Classification

1.

(a) A post carrying a pay or a scale of pay of Rs. 37,400-67,000 in the Pay Band-4.(b) A post carrying a scale Rs. 15,600-39,100 in Pay Band 3.

Group 'A'

2.

A Post carrying a pay or a scale of pay of Rs 9,300-34,800 in Pay Band 2.

Group 'B'

3.

A Post carrying a pay or a scale of pay of Rs. 5200-20,200 in Pay Band 1.

Group 'C'

Part III ? Mode and Procedure of Recruitment

6.

Mode of Recruitment.

(1)

Recruitment to all the posts shall be made on deputation or on short-term contract basis from amongst the persons employed with the Central Government or Central Public Sector Undertakings or Autonomous bodies.

(2)

The mode of recruitment, scale of pay, eligibility, experience and qualifications in respect of each post shall be as specified in Schedule-II.

(3)

The vacancies shall be widely circulated by the Authority.

(4)

Selection of candidates in each case shall be made on the recommendations of a Selection Committee.

(5)

The appointment shall be made for a period not exceeding three years for all posts but the said period may be extended for successive term of one year each subject to a maximum of two years at the discretion of the Authority.

(6)

The maximum age limit for appointment shall be 56 years as on the closing date of receipt of applications in the Authority.

(7)

Notwithstanding anything contained in these rules, the Authority shall have the power of premature repatriation or premature termination of the short term contract, as the case may be, of any employee if his services are no longer required.

7.

Selection Committee.

(1)

For selection to all Group 'A' posts, the Selection Committee shall consist of the following, namely: -

(a)

Chairperson or a Member to be nominated by the Chairperson
Chairperson;

(b)

Joint Secretary, Ministry of Civil Aviation

Member

(c)

An expert to be nominated by the Chairperson

Member

(2)
For selection to all Group 'B and C' posts the Selection Committee shall consist of the following:

(a)
Secretary
Chairperson;

(b)
A nominee of the Ministry of Civil Aviation
Member

(c)
An expert to be nominated by the Secretary
Member

(3)
Each member of the Selection Committee shall give an undertaking that none of his near relatives or next of kin nor any person in whose selection he has a personal interest is under consideration for selection by the Selection Committee.

(4)
Selection Committee shall normally recommend a panel of two names for every vacancy referred to it.

(5)
No appointment shall be invalid merely for the reason of any vacancy in the Selection Committee.

8.
Select Panel.

(1)
The Appointing Authority shall prepare a panel of candidates arranged in the order of their merit, namely the Select Panel, taking into consideration the recommendations of the Selection Committee.

(2)
The Select Panel shall normally be valid for a period of six months:
Provided that the Appointing Authority may, in exceptional cases, extend the validity thereof by a further period of six months after which the Select Panel shall cease to be operative.

9.
Offer of Appointment.

(1)
Offers of appointment to candidates shall be issued in the order in which their names appear in the Select Panel.

(2)
An offer shall be valid for a period of four weeks within which the candidate must join service, after which the offer shall automatically lapse: Provided that in exceptional cases, the Appointing Authority may extend the joining period of four weeks by a further period of four weeks.

(3)
The offer of appointment shall specify the conditions, if any, required to be fulfilled by the candidate, prior to appointment.

(4)
The Appointing Authority may withdraw the offer of appointment if the selected candidate fails to fulfill any of the conditions specified prior to appointment.

(5)
Where an offer of appointment lapses in the manner specified in clause (2) or is withdrawn as per clause (4), an offer of appointment may be made to the candidate next below in the Select Panel.

Part IV ? Pay, Allowances and conditions of service.

10.
Scale and Fixation of Pay.

(1)
The scales of pay applicable in respect of each post shall be such as are set out in Schedule I.

(2)
The pay of an employee shall be fixed in the manner specified for the employees of Central Government drawing

equivalent grade Pay.

(3)

Entitlement of Dearness Allowance, House Rent allowance, Transport Allowance, Deputation Allowance, City Compensatory Allowance, Leave Travel Concession, Leave, Travelling Allowance/Daily Allowance shall be as applicable to the employees drawing equivalent grade Pay in the Central Government.

(4)

Entitlement of residential telephone and reimbursement of newspapers bills shall be as specified by the Central Government, from time to time, for the employees drawing equivalent grade Pay.

(5)

Pension or Provident Fund - The employees shall continue to be governed by the provisions of Pension or Provident Fund as applicable in the lending organisation and the Authority shall have no liability on this account.

Part V ? Medical Facilities

11.

Outdoor Treatment.

(1)

The employees shall be eligible to get reimbursement of outdoor medical expenses for self and members of family.

Explanation - For the purpose of this clause, the expression "family" has the same meaning as assigned to it in the Central Services (Medical Attendance) Rules, 1944.

(2)

The outdoor treatment shall be taken from the authorised medical practitioner on the panel to be maintained by the Authority.

(3)

The reimbursement of Outdoor medical expenses shall be at package rates specified under Civil Services (Medical Attendance) Rules.

12.

Indoor Treatment.

(1)

For the purpose of indoor treatment the employees shall be entitled for medical treatment at Hospitals empanelled by the Ministry of Health and Family Welfare and for this purpose entitlement in respect of cost of treatment including hospital accommodation, nursing home facility, etc. shall be as applicable to the Central Government employees drawing equivalent grade pay.

(2)

Treatment at Hospitals empanelled by the Ministry of Health and Family Welfare, may be taken on the advice of the authorised medical attendants of the Authority except in case of emergency.

Part VI ? Annual Assessments, Disciplinary Proceedings and Penalties

13.

Confidential Reports.

- In the matter of Annual Confidential Report (herein after known as "Annual Performance Appraisal Report") of the employees, the instructions issued by the Central Government, from time to time, in respect of Central Government employees shall be adopted by the Authority with such modifications as may be considered necessary.

14.

Disciplinary Proceedings and imposition of penalties.

(1)

In the matter of Conduct, Discipline and imposition of penalties, the provisions of the Central Civil Services (Conduct) Rules, 1964 and the Central Civil Services (Control, Classification and Appeal) Rules, 1965 and the instructions issued by the Central Government, from time to time, shall apply with such modifications as the Authority may in this behalf specify.

(2)

The Disciplinary Authority in respect of each case shall be as specified in clause (e) of rule 3.

Part VII ? Miscellaneous

15.

Residuary matters.

- The matters in respect of which no express provision has been made in these rules, the orders and instructions, as are applicable to the Central Government employees shall apply.

16.

Power to Relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may by order, for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

17.

Savings.

- Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes and other special categories of persons in accordance with the orders issued by the Central Government, from time to time in this regard.

I

S.No.

Name of the Post

Pay Band and Grade Pay / Pay Scale

Number of Posts

1.

Deputy Chief

PB 3(Rs 15600 - 39100 Grade Pay Rs 7600)

1

2.

Senior Principal Private Secretary

PB 3 (Rs 15600 - 39100 Grade Pay Rs 7600)

1

3.

Principal Private Secretary

PB 3 (Rs 15600 - 39100 Grade Pay Rs 6600)

2

4.

Private Secretary

PB 2 (Rs 9300 - 34800 Grade Pay Rs 4800)

1

5.

Assistant

PB 2 (Rs 9300 - 34800 Grade Pay Rs 4600)

2

6.

Personal Assistant

PB 2 (Rs 9300 - 34800 Grade Pay Rs 4600)

1

7.

Stenographer

PB 1 (Rs 5200 - 20200 Grade Pay Rs 2400)

5

8.

Receptionist cum Telephone Operator

PB 1 (Rs 5200 - 20200 Grade Pay Rs 1900)

1

II

S.No.

Post

Pay Band and Grade Pay / Pay Scale

Mode of recruitment / Eligibility / Experience

Qualification

1.

Deputy Chief

PB-3, Rs. 15600- 39100 with grade pay Rs.7600

Deputation / short term contract from amongst

the Officers of the Central Government / Central Public Sector

Undertakings / autonomous bodies.-(i) holding analogous posts

on regular basis in the parent Department/organisation; or(ii)

with five years continuous service in the regular PB-3, Rs.

15600-39100 with grade Pay Rs. 6600 in the parent Department or

equivalent scale of pay in Central Public Sector Undertakings or

Autonomous Bodies; and(iii) Possessing adequate experience in

personnel and financial administration, preferably having

experience of function in autonomous bodies.

Graduate from a recognized University or

equivalent

2.

Senior Principal Private Secretary

PB-3, Rs.15600-39100 with grade pay Rs. 7600

Deputation / short term contract from amongst

the Officers of the Central Government / Central Public Sector

Undertakings / autonomous bodies:(i) holding analogous posts

on regular basis in the parent Department/organisation; or(ii)

Principle Private Secretary in the PB-3, Rs. 15600 - 39100 with

grade pay Rs. 6600 with five years continuous service in the

grade in the parent Department or equivalent scale of pay in

Central Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognized University or equivalent;

and(ii) Possessing working knowledge of computers.

3.

Principal Private Secretary

PB-3, Rs. 15600-39100 with grade pay Rs. 6600

Deputation / short term contract from amongst

the Officers of the Central Government/Central Public Sector

Undertakings / autonomous bodies:(i) holding analogous posts

on regular basis in the parent Department/organisation; or(ii)

Private Secretary in the PB-2, Rs. 9300-34800 with grade pay of

Rs. 4800 with six years continuous regular service in the grade

in the parent department or equivalent scale of pay in Central

Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognised University or

equivalent; and(ii) Possessing working knowledge of

computers.

4.

Private Secretary

PB-2, Rs.9300-34800 with grade pay Rs 4800

Deputation / short term contract from amongst

the Officers of the Central Government / Central Public Sector

Undertakings / autonomous bodies:(i) holding analogous posts on regular basis in the parent Department/organisation; or(ii) Personal Assistant with two years continuous service in the PB 2, Rs.9300-34800 with grade pay of Rs.4600 in the parent Department / equivalent scale of pay in Central Public Sector Undertaking / autonomous bodies.

(i) Graduate from a recognised University or equivalent, and(ii) Possessing working knowledge of computers.

5.

Personal Assistant

PB 2, Rs 9300-34800 with grade pay Rs. 4600

Deputation / short term contract from amongst the Officer of the Central Government / Central Public Sector Undertakings / autonomous bodies:(i) holding analogous posts on regular basis in the parent Department/organisation; or(ii) Stenographers with three years continuous service in PB-1, Rs. 5200-20200 with grade pay Rs. 2400 in the parent Department / equivalent scale of pay in Central Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognised University or equivalent; and(ii) Possessing working knowledge of computers.

6.

Assistant

PB 2, Rs. 9300-34800 with grade pay Rs. 4600

Deputation / short term contract from amongst the Officers of the Central Government/Central Public Sector Undertakings/Autonomous Bodies,-(i) holding analogous posts on regular basis in the parent Department/organization; or(ii) Upper Division Clerk with three years continuous service in the pay scale of PB-1 (Rs. 5200-20200 grade pay Rs. 2400) in the parent Department/equivalent scale of pay in Central Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognised University or equivalent; and(ii) Possessing working knowledge of computers.

7.

Stenographer

PB-1, Rs 5200-20200 with grade pay Rs 2400

Deputation/ short term contract from amongst the Stenographers of the Central Government/Central Public Sector Undertakings / Autonomous bodies holding analogous posts on continuous basis in the parent Department/ equivalent scale of pay in Central Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognised University or equivalent; and(ii) Possessing working knowledge of computers.

8.

Receptionist Cum Telephone Operator

PB-1, Rs. 5200-20200 with grade pay Rs 1900

Deputation / Short term contract from amongst the officials working in the Central Government/Central Pubic

Sector Undertakings / Autonomous Bodies holding the post of Lower Division Clerk or equivalent on continuous basis in the parent Department or equivalent scale of pay in Central Public Sector Undertakings / autonomous bodies.

(i) Graduate from a recognised University or equivalent; and(ii) Possessing working knowledge of computers.

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